

Court No. - 36

Case :- WRIT - C No. - 20938 of 2011

Petitioner :- Mool Chand Kushwaha

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Kamal Singh Yadav,Ray Sahab Yadav

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble S.C. Agarwal,J.

On prayer made by Shri Rajesh Tripathi, learned counsel for the respondent no.4, the case is directed to be put-up as fresh on 28.4.2011.

Order Date :- 11.4.2011

Ajeet

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Petitioner :- Mool Chand Kushwaha

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Kamal Singh Yadav, Ray Sahab Yadav

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

It is submitted by Shri Kamal Singh Yadav, learned counsel for the petitioner that without complying with the mandatory requirements of the provisions contained in the U.P. Electricity Supply Code, 2005, the Recovery Certificate dated 25.11.2009 has been sent by the respondent no.4 to the Collector, Jhansi (respondent no.2) for recovering an amount of Rs. 28,185/- plus notice charges from the petitioner on account of the assessment made in respect of the petitioner in view of the theft of electricity allegedly committed by the petitioner as per the checking made on 29.11.2008 in the premises of the petitioner .

By the Order dated 11.4.2011, Shri Rajesh Tripathi, learned counsel for the respondent no. 4 was given time to obtain instructions in the matter.

Shri Raj Shekhar Srivastava, holding brief for Shri Rajesh Tripathi, learned counsel for the respondent no.4 states that no instructions have so far been received by Shri Rajesh Tripathi.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1, 2 and 3 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent no. 4 has been accepted by Shri Rajesh Tripathi.

Counter Affidavit on behalf of the respondents may be filed within six weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case before the appropriate Bench on 20th July, 2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, recovery proceedings against the petitioner pursuant to the Recovery Certificate dated 25.11.2009 (Annexure 6 to the Writ Petition) will remain stayed provided within four weeks from today, the petitioner deposits an amount of Rs. 15,000/- with the respondent no4. The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In the event of failure on the part of the petitioner in making the deposit, as directed above, this order will stand automatically vacated.

Order Date :- 28.4.2011

Ajeet

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Petitioner :- Mool Chand Kushwaha

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Kamal Singh Yadav,Ray Sahab Yadav

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Yatindra Singh,J.

Hon'ble Kashi Nath Pandey,J.

List is revised. No one is present on behalf of the petitioner. The writ petition is dismissed for default.

Order Date :- 20.7.2011

KCS